
Unit 4: Regulation of Cyberspace: An Overview

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4.0 INTRODUCTION

Internet is not a physical or tangible entity but rather a giant network which interconnects innumerable smaller groups of linked computer networks. The term 'online' (relating to the form of communication

and its mode of transmission by telecommunication lines) can also be used. There has been a rapid increase in the use of the online environment where millions of users have access to internet resources and are providing contents on a daily basis. This content can be accessed from any computer connected to the network though the content may be actually stored on a number of different computers or 'servers' which need not be in the same jurisdiction as the person who is accessing the material. Internet users may be completely unaware where the resource being accessed, is in fact physically located. This computer networking has been very helpful for businesses of all types for a variety of commercial transactions and consumer services. Apart from transactions involving physical goods, delivery of digitized information products such as music, photographs, novels, motion pictures, multimedia works and software can also be done online. In future also it leads to an increase of economic and creative interactions and inevitably also leads to expansion of disputes involving acquisition, use, possession, processing and communication of information.

The rules for regulating business interaction in a country are different from rules for online commerce. Every country in the world is regulated by law, which is the primary source of regulation. Social norms which guide one's behaviour also function as secondary regulatory constraint. The third constraint is the market which regulates through price mechanism by limiting the amount which a person can spend on different needs; another constraint may be the nature of the world in which we exist. In the real world, the person or the entity with whom interaction relating to business is going on can be located; and thereby the validation of a transaction is facilitated. But in Cyber Space it is very difficult, since parties to a transaction may be sitting in adjoining rooms or in distant locations but the network offers no way to know it. It is often argued that cyberspace is unavoidable but it is not regulable, its behaviour can't be regulated. According to Dr. Dan L. Burk, Assistant Professor of Lawseton Hall University, there is simply no coherent homology between Cyberspace and real space, and screening or blocking of Internet resources by country is nearly impossible. On the other hand, it is argued by Lawrence Lessing in his article, 'The Laws of Cyberspace', that Cyberspace has the potential to be the most fully and extensively regulated space that has ever been known – anywhere at any time in our history. According to him just as in real space, behaviour in Cyberspace is regulated by four sorts of constraint i.e., law, social norms, market and codes (also called architecture).

Every technological revolution brings with it a new spate of legal issues and legal problems to be addressed. The real purpose of our study is to stress the need for regulation of Cyberspace and the possibility and scope of its regulation.

4.1 OBJECTIVES

After studying this unit, you should be able to:

- explain the need and desirability for regulation of internet content both in developed and developing countries;
- discuss that in relation to harmful content on on-line services, the greater emphasis is on self-regulatory scheme of industry governance;
- discuss the nation's legal policies and framework for regulating cyberspace;

- state the desirability for international framework of principles, guidelines and rules for global communication; and
 - discuss the need for coordinated national, if not international criminal laws to deal with illegal content on online services.
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4.2 DESIRABILITY OF REGULATION OF CYBERSPACE

4.2.1 Need for Regulation of Cyberspace

The following reasons can be cited in favor of the above proposition:

- 1) The most visible and readily sensational concern is about the use of internet particularly for the distribution of obscene, indecent and pornographic content. The use of internet for child pornography and child sexual abuse and the relative ease with which the same may be accessed calls for strict regulation.
- 2) The challenge that Cyberspace is posing to traditional notions of jurisdiction and regulation is another factor. The increasing business transaction from tangible assets to intangible assets like Intellectual Property has converted Cyberspace from being a mere info space into important commercial space. The attempt to extend and then protect intellectual property rights online will drive much of the regulatory agenda and produce many technical methods of enforcement.
- 3) With the inventions of new technologies, the media has enhanced the possibility of invasion of the privacy of individual and bringing it into the public domain. The major area of concern where some sort of regulation is desirable is data protection and data privacy so that industry, public administrators, netizens, and academics can have confidence as on-line user.
- 4) Encryption is the process of converting a message or document into a form which hides the content of the communication from the eyes of an eavesdropping third party and needs to be decrypted if its content is to be read. New cryptographic techniques (cryptography is the process used to encode/encrypt electronic information) are commonly cracked in a relatively short time by computational force or by other analytical means. Therefore, another area in which regulation has assumed importance is in the debate over whether the public should be permitted to use 'cryptography' or not.
- 5) Internet has emerged as the 'media of the people' as the internet spreads fast there were changes in the press environment that was centered on mass media. Unlike as in the established press, there is no editor in the Internet. In the press and publication environment, editors check the truthfulness of facts and circulate them once the artistic values are confirmed. On the internet however, people themselves produce and circulate what they want to say and this direct way of communication on internet has caused many social debates. Therefore, the future of Cyberspace content demands the reconciliation of the two views of freedom of expression and concern for community standards.

- 6) Another concern is that, money laundering, be ‘serious crime’ becomes much simpler through the use of net. The person may use a name and an electronic address, but there are no mechanisms to prove the association of a person with an identity so that a person can be restricted to a single identity or identity can be restricted to a single person. Viruses, rumor-mongering, hate-mail and mail box bombardment are all describable phenomena and because of the fear of retribution all are more likely to use fake identity or may be anonymous mailers rather than a readily identifiable person. Therefore, Cyberspace needs to be regulated to curb this phenomenon. Please answer the following to check your progress.

Check your progress1*Spend 3 Min*

Describe the need for regulation of cyberspace?

4.3 HOW CYBERSPACE CAN BE REGULATED

In “Code and other Laws of Cyberspace”, Lawrence Lessing argues that the architecture (code) of the internet i.e. The hardware and software of Cyberspace that define the system can be a form of regulation. It is a set of rules implemented or codified in the software by the code writers, requiring the constant certification of identity.

In “A Non delegation doctrine for the digital age” (Cited: 50 Duke L.J. 5), James Boyle argued that regulation of the internet can increasingly rely on a three-fold strategy:

- i) Privatization: The state can use a private body to achieve those goals which it could not get directly and then implement that body’s decision through mandatory technological arrangements. For e.g. for Copyright enforcement in Cyberspace, the Clinton administrations original plan was to make Internet Service Providers (ISPs) strictly liable for copyright violations by their subscribers – thus creating a private police force, largely free of statutory and constitutional privacy constraints with strong incentives to come up with innovative surveillance and technical enforcement measures.
- ii) Propertization: According to him, first of all an attempt is to be made to extend and then protect intellectual property rights online. This will produce many technical methods of enforcement.
- iii) Technological Controls the system is to be designed so as to hardware in desired regulatory features. For e.g. Digital texts and music could be encoded to a particular person. Detection devices could be built in to players, so that others cannot play one’s music. Unique identifiers could be built into computer chips, so that a person’s computer would broadcast a universal ID with an associated set of legal characteristics as you roamed the net.

Blocking software or Internet contents grading system are other forms of regulations based on technology. In Korea, the government has started the internet contents grading system. The system forces the sites designated as ‘content harmful to minors’ to attach an electronic tag that the blocking

software can catch. Especially the Korean government categories homosexual sites as content harmful to minors and those sites are often blocked.

Please answer the following to check your progress.

Check your progress2:

Spend 2 Min

Discuss how cyberspace can be regulated.

4.4 LEGAL AND SELF REGULATORY FRAMEWORK

In any country the role of government is seen as the provider of legal and regulatory framework within which its subjects have to function. In this context of regulation of cyberspace, it can be said that the Internets' design precludes central control which may be regulated by government to make the information economy safe, secure, certain and open. Rather in the last few years outstanding progress has been made in identifying appropriate structures for industry self-regulation with the minimum appropriate level of government intervention. The development of technology to permit content labeling and the early growth of complaint hot lines in a number of countries have helped to provide the ingredients for self-regulatory schemes. Here, we will discuss some of the major developments in the area of national and international cooperative, major developments for effective online industry regulation in various countries, and end-user voluntary use of filtering/ blocking technologies. This approach is taken in United Kingdom, Canada, New Zealand and a considerable number of Western European countries.

But the idea that Cyberspace should be presumptively self-governing has resounded in thoughtful scholarship and has been criticized by many scholars and it has been argued that the selective government regulation of Cyberspace is warranted to protect and promote liberal democratic ideas. However, in this unit we will not go into the jurist's debate whether Cyberspace can be self regulated or not but try to find out the possibilities in the existing legal framework in various countries for regulating internet content.

4.4.1 Filtering Devices and Rating Systems

'Filters' are software tools used to block access to unwanted material. By the 1990's, concerns about problematic content on on-line services had prompted the development of a range of content filter software and rating systems including the Platform for Internet Content Selection ('PICS'); for example, E-mail filters automatically deletes the bulk of unread e-mail messages commonly known as 'spam' and can also be customized to delete incoming messages from particular sources. There can be site blocking filters to screen out specified websites or websites containing specified keywords that the system presumes to relate to other objectionable content. Site blocking filters also may use a protocol

‘PICS’ developed by the World Wide Web Consortium (‘W3C’) to develop common protocols for the World Wide Web’s evolution and ensure its interoperability. Organizations in several countries have established labeling schemes, which conform to the PICS standards, designed for use by parents and schools. For example, RSACI (Recreational Software Advisory Council labeling scheme for the Internet) rating system addresses the level of violence, sex, nudity, and language on a website and operates as a classification of the content on an Internet site rather than making a judgment about its appropriateness for any given audience or purpose. Such an approach has advantages over those filtering programmes that operate on a keyword basis to exclude offensive material but inevitably, a significant amount of useful, inoffensive content is also blocked. However, its major disadvantage is that it is limited to rating functions, rather than more general information. Consequently, it is not adapted to perform more complex information retrieval searches. Other labeling schemes are Safe surf, Cyber Patrol and Surf Watch.

In 1997 W3C created the ‘Metadata Activity’, which includes the Resource Description Framework (RDF) Working Group. RDF is a protocol for description of Internet content based on a set of 105 ‘categories’ of information, known as the ‘Dublin Core’, which is used to Filter out obscene content. However, it does not deal with controversial content or aim to protect children from harmful content, but describes those aspects of content such as authorship, publishers, date and source in a similar way to that developed by library catalogues and facilitates more effective searching. Examples of its applications include search engine data collection and digital library collections. Therefore, it has not been widely used as an alternative to those schemes that eliminate content on the basis of controversial content alone (see speech by Gareth Grainger).

Please answer the following to check your progress.

Check your progress 3:

Spend 3 Min

Describe in brief the legal and self regulatory framework.

4.5 GOVERNMENT POLICIES AND LAWS REGARDING REGULATION OF INTERNET CONTENT

According to Electronic Frontiers Australia (EFA, March 2002) report on government policies regarding internet censorship in various countries, government policies can be classified into the following four categories:

- 1) The policy to encourage self-regulation.
- 2) Criminal law penalties (Fines or Jail Terms) applicable to content providers who make content “unsuitable for minors” available online.
- 3) The government has also mandated blocking of access to content deemed unsuitable for adults; for example: Australia, China, Saudi Arabia, Singapore etc.

- 4) A number of countries have either prohibited general public access to the internet or require internet users to be a registered / licensed by a government authority before permitting them restricted access.

However, concerns over access to content on internet vary markedly around the world and no universal method can be made applicable to all the Nations. The cyberspace content regulation may depend on technology, law and the cultural concerns in every Nation and is reflected in the respective regulatory law and policies, which we will discuss below.

4.6 UNCITRAL Model Law, 1996

The United Nations Commission on International Trade Law (UNCITRAL) is a Model Law on Electronic Commerce adopted by UN Commission in 1996. with the specific goal to eliminate all kinds of legal and other technical kinds of hindrances and to boost legal certainty for the cyber domain has postulated a series of internationally acceptable rules though it does not regulate every single phase of transactions done electronically. It has embraced the following doctrines:

- 1) Non discrimination principle: No document can be denied legal enforceability just because it is in electronic means.
- 2) Technological neutrality principle: Adapting to existing laws which are neutral in nature and the same can be made applicable to any future innovations.
- 3) The last is the equivalence functional principle. It affords uniform treatment to transactions done online as that of transactions done offline.

All the states have tries to incorporate the UNCITRAL rules so as to bring uniformity in the laws. This Model Law has been divided into two parts:

Part 1 deals with general provisions regarding e-commerce and Part 2 deals with specific provisions for e-commerce in certain areas.

Article 1 talks about information in the form of data messages in the framework of commercial activities.

Article 2 of this Act covers the definitions such as data message which uses the word 'similar means to include any future developments.

Article 3 covers the interpretation techniques.

Article 4 covers variation in communication by agreement between both parties.

Article 5 information in electronic mode cannot be denied legal validity or enforcement.

Article 6 & 7 has removed the hindrance of the document to be in writing and handwritten signatures.

Article 8 talks about standard of reliability (for what reason the data was generated and other surrounding circumstances).

Some of the other general articles are Articles 9 to 15 which talks about evidentiary value granted to messages stored online, retention of information, formation of valid contract, acknowledgment in the form of receipt.

Some of the specific provisions are section 16 and section 17 which enlists carriage of goods and transport documents.

It is important to note that on the same grounds of model law, India had enacted The Information Technology Act, 2000. (Garg Ananya, 2020, p.1).

Check your progress 4:*Spend 3 Min*

Why was the UNCITRAL 1996 adopted?

4.7 Regulation of Cyberspace Content: Global Scenario

4.7.1: UNITED STATES

The exponential growth in the usage of online services in the United States in the late 1980s and early 1990s led to demands for its operations to be regulated.

Communications Decency Act 1996 (CDA)

The Section 502 of the CDA amended sections 223(a) and (d) of Title 47 of the United States Code ('USC'). It prohibits the making and transmission of obscene or 'indecent' material to a minor by means of a telecommunications device, and the use of an interactive computer service to send or display 'patently offensive' material to minors. The provisions also prohibited a person from knowingly permitting a telecommunications facility under that person's control to be used to commit these offences. However Supreme Court in *American Civil Liberties Union v, Janet Reno*, Attorney General of the United States; *American Library Association, Inc. v, United States Department of Justice* (the 'CDA Case', 1997) declared unconstitutional the above two statutory provisions as a violation of both freedom of speech and personal privacy.

COPPA

In 1998 US Congress enacted Children Online Privacy Protection Act (COPPA) which necessitated the federal trade commission to release and implement regulations concerning children's online privacy.

The Rule applies to operators of commercial websites and online services directed to children under 13 that collect, use, or disclose personal information from children, operators of general audience websites or online services with actual knowledge that they are collecting, using, or disclosing personal information from children under 13, websites or online services that have actual knowledge that they are collecting personal information directly from users of another website or online service directed to children. The implementation of the Act was prohibited in the case of *Aschcroft vs American Civil Liberties Union* (2004) as it was likely to fail the "strict scrutiny" test due to the fact that it was not closely customized i.e., it prohibited online publishers from publishing some stuff that adults had a right to gain access to and since it did not utilize the minimum restrictive means feasible to safeguard children. (**Federal Trade Commission, p.1**)

CIPA

In 2000, Children Internet Protection Act (CIPA) was passed. This Act requires the schools and libraries to install filters on computers used by minors and adults.

Other Related Legislation

Uniform Electronic Transactions Act, 1999 (UETA) - to remove barriers to electronic commerce by validating and electronic records and signatures. However, the substantive rules of contract remain

unaffected by it. This Act only operates in some specific sorts of transactions and merely when the parties have approved to perform the transaction by electronic means. (**Sandra Norman-Eady, 2000, p.1**)

Uniform Computer Information Transaction Act, 2000 (UCITA)

According to UCITA, for a transaction to be 'Computer Information Transaction', the main focus of the transaction must be acquiring the computer information, access to it, or its use and not a mere incident of another transaction. The act applies to contracts for the development or creation of computer information, such as software development contracts and contracts to create a computer database. This Act does not apply to many cases in which one person provides information to another person for another transaction such as making an employment or loan application. The state of Maryland was the first state in which UCITA became effective. (**FindLaw Attorney Writers, 2017, p.1**).

The **Gramm-Leach-Bliley Act (GLB Act or GLBA)** or Financial Modernization Act of 1999. It is a United States federal law that calls for financial institutions to clarify how they share and keep their customers confidential information private. (**Federal Trade Commission, p.1**).

The **Health Insurance Portability and Accountability Act of 1996 (HIPAA)** is a federal law that necessitated the formation of national standards to protect the patient's sensitive health information from being revealed without the permission from the patient or without the knowledge of the patient. (**Public Health Professionals Gateway, 2018, p.1**)

The **Fair Credit Reporting Act, 1970** was the first federal law to regulate the use of personal information by private businesses. (**Federal Trade Commission, p.1**)

The other cyber security laws to strengthen the domain in the US:

1. **Consumer Privacy Protection Act, 2017** aims at assuring the safety of personal information of users, to circumvent identity theft, to inform its citizens and organizations concerning security violations and to put a stop to the mishandling of sensitive user information. (**Gov track, 2017, p.1**)
2. **Cybersecurity Information Sharing Act (CISA)** is a proposed legislation that will permit United States government agencies and non-government agencies to dole out information with each other as they examine and scrutinize cyberattacks. (**Thomas F. Duffy, Chair, 2016, p.1**)
3. **Cybersecurity Enhancement Act of 2014** was signed into law on December 18, 2014. It provides an ongoing, voluntary public-private partnership to develop, enhance and upgrade and develop cybersecurity and boost cybersecurity research and development, workforce development and education and public awareness and preparedness. (**govinfo, p.1**)

4.7.2 European Union

The approach of a large majority of (perhaps all) European Union Member States in dealing with illegal and harmful content on the Internet appears to be in accord with the 1996 recommendations of the European Commission advocating the use of filtering software and rating systems, and an encouragement of self-regulation of access providers. In these countries, laws regarding material that is illegal offline, such as child pornography and racist material, also apply to Internet content. With regard to material unsuitable for children, the EU Safer Internet Action Plan covering the period 1999-2002 has a budget of 25 million euro and has three main action lines;

- Creating a safer environment through promotion of hotlines, encouragement of self-regulation and codes of conduct,
- Developing filtering and rating systems, facilitation of international agreement on rating systems,
- Awareness: Making parents, teachers and children aware of the potential of the Internet and its drawbacks, overall co-ordination and exchange of experience.

The word ‘cybersecurity’, from the viewpoint of European Union, involves a blend of cyber resilience, cybercrime, cyber defence, (strictly) cybersecurity and global cyberspace concerns. It is noteworthy that while the two EU Cybersecurity approaches pursued the adoption of various legislative measures regarding cybersecurity, they put forward policy objectives which later resulted in legislation, namely the *Network and Information Security Directive* and the *Cybersecurity Act* (came into force on 27th June 2019.) which further sheds light on the job and order of the European Union Agency for Network and Information Security (ENISA). Building on this observation, it is proposed that the cybersecurity area recuperates itself by both law and policy measures. Policy measures from various policy areas eventually led to changes and adjustments in various EU legal frameworks and *vice versa*.

“*The EU General Data Protection Regulation (GDPR)*, which governs how personal data of individuals in the EU may be processed and transferred, went into effect on May 25, 2018. GDPR is a comprehensive privacy legislation that applies across sectors and to companies of all sizes. It replaces the Data Protection Directive 1995/46. The overall objectives of the measures are the same – laying down the rules for the protection of personal data and for the movement of data”. (<https://www.trade.gov/>).

4.7.3 UNITED KINGDOM

In September 1996, UK Government issued R3 Safety-Net action plan (now Internet Watch Foundation, IWF), developed by UK ISP trade associations and where it is agreed by Government involve industry for establishment of complaints hotline and related take-down procedures for illegal Internet content, primarily child pornography. In February 2002, the IWF announced that it would henceforth also deal with “criminally racist content”.

Related Legislation in UK

- 1) The Computer Misuse Act, 1990 is an” Act to make provision for securing computer material against unauthorised access or modification; and for connected purpose” . (legislation.gov.uk).
- 2) Electronic Communications Act, 2000 to facilitate the use of electronic communications and electronic data storage.
- 3) Data Protection Act 2018 (DPA 2018) superseded Data Protection Act, 1998 and supplements the EU General Data Protection Regulation (GDPR). The act makes “provision for the regulation of the processing of information relating to individuals; to make provision in connection with the Information Commissioner’s functions under certain regulations relating to information; to make provision for a direct marketing code of practice; and for connected purposes.” (legislation.gov.uk)

National Cyber Security Centre (NCSC), UK – In 2016, CESG (the information assurance arm of GCHQ), the Centre for Cyber Assessment, CERT-UK, and the Centre for Protection of National Infrastructure were merged to form National Cyber Security Centre. It provides a single point of contact

for SMEs, larger organisations, government agencies, the general public and departments and also works in collaboration with other law enforcement, defence, the UK's intelligence and security agencies and international partners. (NCSC.GOV.UK)

4.8 REGULATION OF CYBERSPACE CONTENT IN INDIA

In India, Information Technology Act, 2000 is the legislation which covers the domain of cyber law. The main objective of the Act is to provide legal recognition for transactions carried out by means of electronic data interchange and other means of electronic communication, commonly referred to as e-commerce, which involve the use of alternatives to paper-based methods of communication and storage of information to facilitate electronic filing of documents with the Government agencies.

Electronic Signatures [Chapter II]

Any subscriber (i.e., a person in whose name the Digital Signature Certificate is issued) may authenticate electronic record by affixing his Digital Signature. Electronic record means data record or data generated image or sound, stored, received or sent in an electronic form or microfilm or computer-generated microfiche.

Electronic Governance [Chapter III]

Where any law provides submission of information in writing or in the typewritten or printed form, it will be sufficient compliance of law, if the same is sent in an electronic form. Further, if any statute provides for affixation of signature in any document, the same can be done by means of Digital Signature.

Similarly, the filing of any form, application or any other documents with the Government Authorities and issue or grant of any licence, permit, sanction or approval and any receipt acknowledging payment can be done by the Government offices by means of electronic form. Retention of documents, records, or information as provided in any law, can be done by maintaining electronic records. Any rule, regulation, order, by-law or notification can be published in the Official Gazette or Electronic Gazette.

However, no Ministry or Department of Central Government or the state Government or any Authority established under any law can be insisted upon acceptance of a document only in the form of electronic record.

Regulation of Certifying Authorities [Chapter IV]

The Central Government may appoint a Controller of Certifying Authority who shall exercise supervision over the activities of Certifying Authorities.

Digital Signature Certificate [Chapter VII]

Any person may make an application to the Certifying Authority for issue of Digital Signature Certificate. The Certifying Authority while issuing such certificate shall certify that it has complied with the provisions of the Act.

Penalties and Adjudication [Chapter IX]

If any person without the permission of the owner, accesses the owner's computer, computer system or computer net-work or downloads copies or any extract or introduces any computer virus or damages computer, computer system or computer net work data etc. he/ she shall be liable to pay damage by way of compensation not exceeding Rupees One Crore to the person so effected.

The Appellate Tribunal [Chapter X]

The section 48 of IT Act provides 'that The Telecom Disputes Settlement and Appellate Tribunal established under section 14 of the Telecom Regulatory Authority of India Act, 1997 shall, on and from the commencement of Part XIV of Chapter VI of the Finance Act, 2017, be the Appellate Tribunal for the purposes of this Act and the said Appellate Tribunal shall exercise the jurisdiction, powers and authority conferred on it by or under this Act. However, the Central Government shall specify, by notification, the matters and places in relation to which the Appellate Tribunal, may exercise jurisdiction'.

Under the act, the Central Government has the power to establish the Cyber Regulations Appellate Tribunal having power to entertain the cases of any person aggrieved by the Order made by the Controller of Certifying Authority or the Adjudicating Officer.

Offences [Chapter XI]

Tampering with computer source documents or hacking with computer system entails punishment with imprisonment up to three years or with fine up to Rs. 2 lakhs or with both.

Publishing of information, which is obscene, in electronic form, shall be punishable with imprisonment up to five years or with fine up to Rs. 10 lakh and for second conviction with imprisonment up to ten years and with fine up to Rs. 2 lakhs.

The Information Technology Act, 2000 was amended in 2015 wherein the Supreme Court in the case of Shreya Singhal v. Union of India had struck Section 66A of Information Technology Act, 2000 as it violates the freedom of speech and expression provided under Article 19(1)(a) of the Constitution of India.

Check your progress 5:

Spend 3 Min

List the specific legislation in different countries to regulate cyber space.

4.9 INTERNATIONAL INITIATIVES FOR REGULATION OF CYBERSPACE

Today there is a need for an international framework of principles, guidelines and rules for global communications for the twenty-first century. In July 1997, the German Government hosted an International Conference in Bonn on the topic 'Global Information Networks', in cooperation with the

European Commission that resulted in the adoption of the 'Bonn Declaration' of the Ministers as well as declarations by industry and user participants. The Bonn Declaration pointed in the direction of:

- 1) using current national legal frameworks for the enforcement of criminal law provisions where appropriate in respect of on-line crime;
- 2) development by industry of common principles for schemes of self-regulation regarding content of on-line services; and
- 3) establishment of national hotlines for complaints regarding on-line content and for some appropriate interconnection and interaction between national hotlines.

Martin Bangemanns, EC Commissioner in her speech of 8 September 1997 to the International Telecommunications Union in Geneva has pointed out that there is a need for an international charter for global communications, and in particular governing activities carried out over the Internet that could provide a suitable framework covering such issues as the legal recognition of digital signatures, encryption, privacy, protection against illegal and harmful content, customs and data protection. The tools for achieving these objectives would include mutual recognition, self-regulation and, if needed, regulation.

In 29 June 1998, on invitation by Martin Bangemann, business leaders from around the world participated in a discussion on global communication issues, with the objective to explore the need for strengthened international coordination which resulted in the formation of Global Business Dialogue and it was resolved that wherever possible, it should avoid legislation, and concentrate on market-led, industry- driven, self-regulatory models and any regulation should ensure competition. It should focus on a well-defined list of issues on which quick progress can be made with the close cooperation of business, consumer groups and governments of all countries who wants to participate and work on these issues should be industry-led and coordinated with relevant international bodies. Two organizations closely involved in this process were the Transatlantic Business Dialogue and the US-Japan Business Council. Attendance at the first meeting of the GBD's Business Steering Committee took place in New York on 14 January 1999 and consisted largely of representations of major corporations from United States, Europe and Japan. However, the issue of Internet content was not considered amendable to relatively fast solutions by the GBD and so Internet content is not receiving immediate attention from this Group.

In 27 February 1999, the first meeting of the International Network of Experts on Self-Regulation for Responsibility and Control on the Internet was held at New York. This network was brought together by the Bertelsmann Foundation, a charitable foundation which owns the controlling interest in Bertelsmann Corporation, the German media and publications enterprise, as a part of its advocacy of self-regulatory solutions to the problems of Internet content. The three regulatory agencies represented at the meeting were the Australian Broadcasting Authority, the Canadian Radio Telecommunications Commission (by Mr. Ted Woodhead) and the Singapore Broadcasting Authority (by Ms. Ling Pek Ling); all of which are actively dealing with the issues of self-regulation of harmful content on the Internet.

The above study reflects initial approaches and legal policies in the world in context of regulation of cyberspace and International efforts to deal with it but due to democratic and challenging nature of

cyberspace the efforts on the part of various international organization is required to deal with the cybersecurity and share information so that harmonious regional efforts can be taken to regulate the cyberspace keeping in pace with technology. The role of few of the organizations have been discussed below:

4.9.1 Organization for Economic Cooperation and Development (OECD)

The OECD an international organization working in the area of data privacy and information security, established an ad hoc process of meetings (the first was on 1-2 July 1997 and second on 22 October 1997) on approaches being taken in major industrial countries for the regulation of content conduct on the Internet. The meeting acknowledged the primary role of the private sector in regulating the Internet. However, at the joint OECD/Business and Industry Advisory Committee forum held on 25 March 1998 in Paris, the OECD resolved to do no further work in this area. On 19 April 2006, OECD task force on spam has recommended that Governments and industry should step up their coordination to combat the global problem of spam. It calls on governments to establish clear national anti-spam policies and give enforcement authorities more power and resources. Co-ordination and co-operation between public and private sectors are critical, the report notes.

4.9.2 UNESCO

The United Nations Educational, Scientific and Cultural Organization (UNESCO) was founded on 16 November 1945. At the 29th UNESCO General Conference held in Paris from 21 October to 12 November 1997 the Director-General of UNESCO made a preliminary report on the feasibility of an international instrument on the establishment of a legal framework relating to cyberspace. It recommended the preservation of a balanced use of language on cyberspace, which represented the concern of non-Anglophone countries at the domination of English as the language of the Internet. Today, UNESCO functions as a laboratory of ideas and a standard-setter to forge universal agreements on emerging ethical issues: the organization also serves as a clearing house – for the dissemination and sharing of information and knowledge – while helping Member States to build their human and institutional capacities in diverse fields.

4.9.3 Cyberbrics- This project has a threefold purpose. Firstly, to plot the prevailing protocols; to recognize finest procedures or ways and build policy propositions in the arena of cybersecurity governance (including personal data regulation), Internet access policy and tactics for the digitisation of public supervision in the BRICS (Brazil, Russia, India, China and South Africa). The focus areas are: data protection, consumer protection, cybercrime, protection of public order and lastly cyber defense. This endeavour or venture is held by Fundação Getulio Vargas (FGV) Law School and expounded in collaboration with the Higher School of Economics, in Moscow, Russia; the Centre for Internet and Society, New Delhi, India; the Fudan University, Shanghai, and the Hong Kong University, China; and the University of Cape Town, Cape Town, South Africa. (**Cyberbrics, p.1**)

Check your progress 6:

Spend 3 Min

What are the international initiatives for regulation of cyberspace?

Please answer the following to check your progress.

Check your progress 7: Spend 3 Min.

State whether the following statements are true or false:

a) In Australia, government has mandated blocking of access to content deemed unsuitable for adults.

.....

b) In Korea, the government has no system of Internet content grading.

.....

c) Australian Broadcasting Authority and Singapore Broadcasting Authority are the only two regulatory agencies in the meeting of International Network of Experts (Feb, 1999).

.....

Let us now summarize the points covered in this unit.

4.10 SUMMARY

- There has been rapid increase in use of internet for various types of commercial transactions and consumer services.
- For the safe carriage and conduct of Cyberspace, regulation ought to be identified as appropriate and necessary.
- The necessity arises due to the expansion of economic and creative interaction which in term led to disputes involving acquisition, use, possession, processing and communication of information.
- The use of internet for obscene, indecent and pornographic content, rumor mongering, viruses, cyber crime, possibility of invasion of privacy of individuals, all this emphasized the need for cyberspace regulation.
- Legal policies in various countries like USA, UK, European Union, and New Zealand show that in the context of regulation of Cyberspace more emphasis is on self regulation through use of filtering/blocking technologies.
- There is need for coordinated international guidelines and principles to regulate cyberspace.
- International organizations such as OECD, UNESCO, Cyber BRICS can play an important role in framing international regulatory framework for internet.

4.11 ANSWERS /SOLUTIONS

Check your progress:

1. Cyberspace is susceptible to a variety of threats and needs to be immediately addressed. However, the cyber society is more focused on upgrading the technology rather focusing on taking clear measures to stabilize this domain despite being aware of the emerging threats. Hence, it is crucial to mend the existing state the cyber space is in. The ease of accessing materials which are obscene and have indecent content should be looked into, the increasing business transaction from tangible assets to intangible assets needs attention due to both regulatory and jurisdictional issues, data protection and data privacy laws should be stringent so that the users are confident as to accessing the internet.
2. Privatization: The state can use a private body to achieve those goals which it could not get directly and then implement that body's decision through mandatory technological arrangements. Propertization: According to him, first of all an attempt is to be made to extend and then protect intellectual property rights online. This will produce many technical methods of enforcement. Technological Controls: The system is to be designed so as to hardware in desired regulatory features. Blocking software or Internet contents grading system are other forms of regulations based on technology.
3. In recent times, the internet design has excluded government control for regulation of cyberspace, the government role has turned to be very minimal. But some argue that government intervention is necessary for regulating this domain. Some of the countries like UK, Canada, New Zealand and a considerable number of Western European countries have adopted the approach of end-user voluntary use of filtering/blocking technologies.
4. It was adopted by the UN Commission on International Trade Law in 1996 in furtherance of its mandate to promote the harmonization and unification of international trade law, so as to remove unnecessary obstacles to international trade caused by inadequacies and divergences in the law affecting trade.
5. In the United States, Communication Decency Act, 1996, Internet Online Summit held in 1997, COPPA, 1998 which was regarding children's online privacy, CIPA, 2000 which requires the schools and libraries to install filters on computers used by minors and other legislations like the Uniform Electronic Transactions Act, 1999 to remove barriers regarding electronic signatures, Uniform Computer Information Transaction Act, 2000 and many other legislations. In the United Kingdom, Computer Misuse Act, 1990 which had introduced three concepts regarding unauthorized access to facilitate an offence by modification. Organisations like CERT-UK and Centre for Protection of National Infrastructure was established to handle cyber security. In India, the legislations are The Information Technology Act, 2000 and Indian Penal Code which deals with cyber offences and penalties.
6. Organisation for Economic Cooperation and Development has been playing an important role in the area of privacy, security, protecting children online and data governance; UNESCO focuses on the sum of processes and technologies used for free flow of information in the public domain; The CYBERBRICS project which has a triple aim of mapping existing regulations, identifying best practices and developing policy suggestions in the areas of cybersecurity governance,

Internet access policy and strategies for the digitalisation of public administrations in the 4 countries.

7. (a) True, (b) False & (c) False

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